

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ALEX URENA,

Index No.:

Plaintiff,

VERIFIED
COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, P.O. JOSEPH ZACCARO,
and P.O. "JAMES DOE",

Defendant(s).

-----X

Plaintiff, by his attorney, GEORGE STAVROPOULOS, ESQ. complaining of the
Defendants, respectfully alleges as follows, upon information and belief:

AS AND FOR A FIRST CAUSE
OF ACTION AGAINST DEFENDANTS

1. That at all times herein mentioned the Plaintiff, Alex Urena, was and still is a
resident of Bronx County, City and State of New York.

2. That at all times herein mentioned the Defendant, THE CITY OF NEW YORK
(hereinafter referred to as "CITY"), was and is a municipal corporation, duly organized and
existing under and by virtue of the laws of the State of New York.

3. That at all times herein mentioned, the Defendant, THE NEW YORK CITY
POLICE DEPARTMENT (hereinafter referred to as "NYPD") was a department, division or an
agency duly organized and existing under and by virtue of the laws of the State and/or City of New
York.

4. That at all times hereinafter mentioned, the Defendant, P.O. JOSEPH ZACCRO (hereinafter referred to as Zaccaro), is an officer of NYPD and was under the direct employ and control of the NYPD.

5. That at all times herein mentioned, the Defendants CITY and NYPD, hired, trained and were responsible for the actions of their employees and police officers, namely Zaccaro, while said officers were under their control.

6. That on January 27, 2017, the Plaintiff duly served the Defendants, with a Notice of Claim pursuant to Section 50-e of the Municipal Law within the time period proscribed by Law.

7. That the Plaintiff has complied with all the conditions precedent to the institution of this action and has complied with all the provisions of the charter of the City of New York in relation thereto and in particular has duly presented their claims to the Comptroller and Corporation Counsel of the City of New York for adjustment, and that more than thirty (30) days have elapsed since the presentment of said verified demands and claims and the said Comptroller and/or Defendants have wholly neglected, failed and refused to make any adjustment of payment thereof, and this action was commenced within one (1) year and ninety (90) days after the Plaintiff's arrest and false imprisonment.

8. That the Defendants have conducted a Municipal Hearing pursuant to Section 50-h of the Municipal Law on or about April 6, 2017, and that the Plaintiff has otherwise complied with all of the requirements and conditions precedent required by law to be performed prior to the institution of this action.

9. That on the 30th day of October, 2016, at or about 3:30 A.M., at Plaintiff's place of employment, Party City, located at 1 Fordham Plaza, Bronx New York, 10458, in the County of Bronx, City and State of New York, P.O. Zaccaro and P.O. "John Doe" of Defendant NYPD, a

department or division of defendant CITY, did stop Plaintiff while he was lawfully in front of his place of employment, and did wrongfully, violently, forcibly, arrest and restrain Plaintiff without just cause and with malicious intent.

10. That Plaintiff was handcuffed and transported to the 48th Police Precinct without just cause and with actual malicious intent, and was processed and subsequently transferred to the Criminal Court of the City of New York.

11. That the actions of the Defendants were done with malice and without probable cause to believe that after the arrest there would be a conviction of the Plaintiff.

12. That NYPD without just cause and with actual malicious and/or gross negligence did prosecute the claimant under the penal code of the State of New York, and that the Bronx District Attorney's Office declined to prosecute Plaintiff under said accusatory instrument.

13. That the charges brought against Plaintiff were dismissed and he was released after being wrongfully and maliciously detained for nearly 20 hours.

14. That during the assault, arrest and false imprisonment, other officers, agents, servants and/or employees of the Defendants remained at the scene and did not stop or attempt to stop the arrest of the Plaintiff thereby aiding and abetting each other in their unlawful acts and in violating the special duty they owed to the Plaintiff.

15. That said arrest, imprisonment and assault were unwarranted and unjustified under the circumstances then and there existing and was caused solely and wholly by the negligence, carelessness and recklessness of the Defendants, their agents, servants and/or employees, and was without any fault, negligence or want of care on the part of the Plaintiff.

16. That the acts complained of were done by the police officers and/or detectives in the course of their employment with the Defendants CITY and NYPD, and was without cause and

provocation; that the Defendants were further careless and negligent in the manner and method in which they performed their duties; in that each acted without cause in assaulting, arresting and imprisoning the Plaintiff; in that each acted indiscriminately and in total disregard of the life, limb or safety of the Plaintiff; in that each failed to exercise due care, caution and prudence in the performance of their duties; and that each failed to stop and prevent the unlawful acts.

17. That solely as a result of the negligence, carelessness and recklessness of the Defendants, CITY and NYPD its agents, servants, employees and officers as aforesaid, the Plaintiff suffered defamation of his character, serious and permanent, psychological and physical injuries.

18. That by reason of the aforesaid, Plaintiff was rendered sick, sore, lame and disabled, and was unable to attend to his usual duties for a considerable time, was terminated from his employment, required medical aid and attention, suffered grievous physical pain and mental anguish and has been damaged and demands compensatory and punitive damages in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
FOR FALSE ARREST, WRONGFUL IMPRISONMENT

19. Plaintiff, Alex Urena, repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "18" with the same force and effect as if more fully set forth at length herein.

20. Defendants without cause, provocation or probable cause did arrest, detain and imprison the plaintiff depriving him of his liberty and civil rights.

21. That Defendants NYPD failed to investigate the facts and circumstances surrounding the Plaintiffs arrest and failed to follow up on information provided by Plaintiffs at the time of his arrest resulting in his wrongful imprisonment.

22. That by reason of the aforesaid, Plaintiffs was rendered sick, sore, lame and disabled, and was unable to attend to his usual duties for a considerable time, required medical aid and attention, suffered grievous physical pain and mental anguish and has been damaged and demands compensatory damages in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION
FOR VIOLATION OF CIVIL RIGHTS

23. Plaintiff, Alex Urena, repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "22" with the same force and effect as if more fully set forth at length herein.

24. That the Defendants severally and jointly did violate the Plaintiffs Civil Rights granted to him pursuant to 42 US Code Section 1983 et. sec. 1988, and the 4th and 14th Amendments to the Constitution of the United States.

25. That the Defendants, CITY and NYPD were responsible for the training, supervision and conduct of NYPD Police Officers, and were further responsible by law for enforcing regulations of the City of New York and for insuring that the NYPD Police Officers obey the laws of the State of New York and the United States of America.

26. As a direct and proximate result of the above referenced unlawful and malicious Arrest of Plaintiff, by the Defendants, committed under color of law and acting under their authority as Police Officers for the NYPD, the Plaintiff suffered physical and emotional harm and was deprived of his right to be secure in his person against unreasonable seizure of his person in violation of Plaintiff's Civil Rights.

27. As a direct and proximate result of the malicious and outrageous conduct of the NYPD Police Officers as set forth above, the plaintiff suffered personal injuries and suffered

special damages in the form of medical expenses and lost wages and will suffer additional special damages in the future in an amount that cannot yet be determined.

28. The actions of the Defendant(s), the CITY, NYPD, and P.O. Zaccaro, as set forth above was intentional, wanton, malicious and oppressive thereby entitling the Plaintiff to an award of compensatory, punitive damages, and attorney's fees in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION
FOR PUNITIVE DAMAGES

29. Plaintiff, Alex Urena, repeats and realleges each and every allegations set forth above numbered "1" through "28" inclusive with the same force and effect as if more fully set forth at length herein.

30. The actions of the Defendants herein above alleged, were malicious, willful and grossly negligent.

31. The Defendants, CITY and NYPD, authorized, permitted and ratified the unlawful and negligent acts of Defendant, P.O. Joseph Zaccaro, its agents, servants and/or employees, herein above alleged.

32. By reason of the foregoing, the Plaintiff, Alex Urena, demands judgment for punitive damages against the Defendants, CITY, NYPD, including, but not limited to Defendant, P.O. JOSEPH ZACCARO, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants, for monetary damages, together with the costs and disbursements of this action and for such other and further relief as this court deems just and proper.

Dated: Brooklyn, New York
September 8, 2017

Yours, etc.

**THE LAW OFFICE OF
GEORGE STAVROPOULOS, P.L.L.C.**

By: George Stavropoulos, Esq.
Attorneys for Plaintiff
120 Bay Ridge Avenue
Brooklyn, New York 11220
(718) 797-1212

VERIFICATION

STATE OF NEW YORK)
)ss.:
COUNTY OF KINGS)

I, the undersigned, am an attorney admitted to practice in the Courts of the State of New York, state as follows:

I am an attorney with The Law Office of George Stavropoulos, P.L.L.C., the attorney of record for Plaintiff, Alex Urena.

I have read the foregoing **SUMMONS AND VERIFIED COMPLAINT** and know the contents thereof; that I know the same to be true to my knowledge, except as to matters alleged on information and belief, and as to those matters I believe them to be true; that the grounds and source of my information and belief is based upon consultation with the Plaintiff(s) and information contained in the files and records maintained by your affirmant's office and I make this verification in accordance with CPLR 3020(d)(2).

I affirm the foregoing statements are true under penalties of perjury.

Dated: Brooklyn, New York
September 8, 2017

GEORGE STAVROPOULOS, ESQ.

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JOSEPH ZACCRO and P.O. "JAMES DOE",****Defendant(s).**

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SUMMONS AND VERIFIED COMPLAINT

STATE OF NEW YORK, COUNTY OF KINGS , SS.:

GEORGE STAVROPOULOS, the undersigned, an attorney admitted to practice in the Courts of New York State, affirms the following:

I further certify that my signature below acts as a "certification" for the documents attached hereto, in compliance with section 130-1.1-a of the Rules of the Chief Administrator (22 NYCRR).

**Dated: Brooklyn, New York
September _____, 2017**

GEORGE STAVROPOULOS, ESQ.

PLEASE TAKE NOTICE:

() that the within is a (certified) true copy of a Notice of entered in the Office of the clerk of the within Entry named Court on
() that an Order of which the within is a true copy will be presented for Notice of settlement to the Hon. one of the Judges of the Settlement within named Court,
on , at

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